

Fenwick v. Sears's Administrators.

should bear his own expenses, but that they did not inform the defendant of that circumstance. That at the time he went, they thought favorably of the trust, and wrote, by the drawer, to the defendant, expressing their opinion of it, and inclosing to the defendant a power of attorney to act for them in the business, and to receive any moneys that might be recovered under the trust, and informing him that the drawer would attend and look after the said concerns. That at the time of presenting the bill, they had not received any money under the trust, but were in advance on that account. That the bill was indorsed by the defendant, to enable the drawer to raise money in France, for the purpose of supporting his necessary expenses, whilst he was prosecuting there those claims in which the drawees were interested as trustees, and that the drawer sold them for that purpose. That the defendant came to this country on business, in October 1800, and returned to France in May 1802, and during his stay in this country, made Georgetown his place of residence.

That after this bill was drawn, the drawer received in France a sum of between \$2000 and \$3000, in the *beginning of the year 1798; that during the years 1798, 1799 and 1800, French ships were permitted to [*263 sail directly from America to France, for the purpose of carrying Frenchmen home; this happened perhaps twice a year, or oftener. That during these years, there was a communication between America and France for letters, &c., through the medium of London and Hamburg. That after the spring of 1798, American vessels were very often captured by the French armed vessels on the high seas; and that at the time, previous to the year 1798, American ships were embargoed in France.

The defendant then prayed the court to instruct the jury, that upon the whole evidence, as stated, the plaintiffs, by their neglect in not giving notice to the defendant, the indorser on the said bill, that it was protested for non-acceptance and for non-payment, sooner than they did, had released the defendant from all responsibility on the same, and could not recover thereon; which direction was not given as prayed, the court being divided in opinion, whether, in this case, the question of reasonable notice was a matter of law to be determined by the court, or a matter of fact to be determined by the jury. But the court were of opinion, and so directed the jury, that if they should be of opinion, from the evidence, that the defendant who indorsed the bill drawn by F. L. Taney in this suit, knew, at the time of such indorsement, that the said Taney had no effects in the hands of the drawers, on which he could draw, notice of the non-payment, or of the protest therefor, was not necessary to enable the plaintiffs to recover, in this action, on the count for money had and received.

5. The fifth bill of exceptions, after repeating the evidence at length, stated that the defendant prayed the court to instruct the jury, that although they might be of opinion, that Fenwick, the defendant, knew, at the time of his indorsement, that the drawer had no effects in the hands of the drawees, on which he could draw, yet, to support an action on the bill of exchange, against the defendant, it was necessary for the plaintiffs to give him reasonable notice of the protest of the bill for non-acceptance or non-payment, one or the other; and that, under the circumstances of this case, notice to the said Fenwick of *such protest for non-acceptance, or non-payment, in October 1800, was not reasonable notice; where- [*264